

Moharram Ali v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 1 March 2023 · WRIT - C No. - 6230 of 2023 · **Writ disposed; fresh theft-dues order must follow Supply Code procedure.**

HEADNOTE

Where the Electricity Department withdraws a demand notice for recovery of dues alleged to arise from theft of electricity and states that a fresh order will follow the procedure prescribed in law, the writ challenging that notice is disposed of with liberty to pass the fresh order strictly in accordance with the procedure under the Electricity Supply Code, 2005. The Court did not examine the demand on merits and cited no numbered clause.

FACTUAL SUMMARY

Moharram Ali petitioned the Allahabad High Court against a demand notice dated 2 September 2022 issued by the respondent Electricity Department for recovery of electricity dues said to arise from theft of electricity. On 23 February 2023 the Court granted the Department time to obtain instructions and listed the writ afresh. On 1 March 2023 counsel for the Department stated that the impugned recovery had been withdrawn and that a fresh order would be passed after the procedure prescribed in law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of a theft-dues recovery

HOLDING

Once the distribution licensee withdraws a demand notice for recovery of electricity dues in a case of theft and states that a fresh order will be passed after following the procedure prescribed in law, the writ challenging that notice is disposed of with liberty to the licensee to pass the fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 2

FLAG No numbered clause is cited. The order refers only to the procedure prescribed under the Electricity Supply Code, 2005.

PRINCIPLE TAGS

fresh-order-must-follow-supply-code-procedure Applied to dispose the writ after the Department withdrew the 2 September 2022 theft-dues recovery, leaving any fresh order to be passed strictly in accordance with the procedure under the Electricity Supply Code, 2005, without a merits decision. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 2 SEPTEMBER 2022 WAS A LAWFUL ASSESSMENT OF THEFT DUES, AND WHAT A FRESH ORDER MAY DETERMINE.

The Court recorded the Department's withdrawal and did not rule on the assessment. It identified no Supply Code clause governing the fresh order. ¶ 2